

25AVCV01734 25AVCV01734

County: los-angeles

Division: Civil Law and Motion

Department: A14

Hearing date: 2026-06-23

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=ATP%2CA14%2C06%2F23%2F2026

Source SHA-256: ee73a29999fde47176c7cc5a4bf35bc5c3ac134c0db62591c497c96befca77b2

Case Number: 25AVCV01734 Hearing Date: June 23, 2026 Dept: A14

SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF LOS ANGELES – NORTH DISTRICT

M.J.H. AND M.H., individually and as successors in interest to decedent MARION JAMES HARRIS, SR., by and through their guardian ad litem, RHONDA STAMP,

Plaintiff,

v.

CALIFORNIA DEPARTMENT OF CORRECTIONS AND REHABILITATION; LEANNA LUNDY, an individual; CHRISTINA GALSTIAN, and individual and DOES 1 through 20, inclusive,

Defendants.

Case Number 25AVCV01734

[TENTATIVE]

STATEMENT OF DECISION

Date of Hearing:

June 23, 2026

Dept. A-14

Judge William H. Forman

I. Background

This is a wrongful death action. Marion James Harris, Sr. ("Decedent") was incarcerated in Lancaster, California and was involved in an altercation with several correctional officers on August 26, 2025. Plaintiffs M.J.H. and M.H. ("Plaintiffs"), individually and as successors in interest through their guardian ad litem, allege that failure to summon and furnish appropriate medical care after the incident led to Decedent's death 5 days later.

On December 31, 2025, Plaintiffs filed their Complaint against Defendants California Department of Corrections and Rehabilitation (CDCR), Leanna Lundy, Christina Galstian, and DOES 1 through 20 ("Defendants"), alleging survival and wrongful death claims including negligence, assault, battery, violation of the Bane Act, and failure to obtain or furnish medical care.

On February 17, 2026, Defendants filed the instant demurrer.

No Opposition has been filed.

II. Legal Standard(s)

Standard for Demurrer – A demurrer for sufficiency tests whether the complaint states a cause of action. (Hahn v. Mirza (2007) 147 Cal.App.4th 740, 747.) When considering demurrers, courts read the allegations liberally and in context. (Taylor v. City of Los Angeles Dept. of Water and Power (2006) 144 Cal.App.4th 1216, 1228.) In a demurrer proceeding, the defects must be apparent on the face of the pleading or by proper judicial notice. (Code Civ. Proc., § 430.30(a).) A demurrer tests the pleadings alone and not the evidence or other extrinsic matters. (SKF Farms v. Superior Court (1984) 153 Cal.App.3d 902, 905.) Therefore, it lies only where the defects appear on the face of the pleading or are judicially noticed. (Ibid.) The only issue involved in a demurrer hearing is whether the complaint, as it stands, unconnected with extraneous matters, states a cause of action. (Hahn, supra, 147 Cal.App.4th at 747.) A general demurrer does not lie as to a portion of a cause of action, and if any part of a cause of action is properly pleaded, the demurrer will be overruled. (Campbell v. Genshlea (1919) 180 Cal. 213, 217.)

A general demurrer admits the truth of all factual, material allegations properly pled in the challenged pleading, regardless of possible difficulties of proof. (Blank, supra, 39 Cal.3d at p. 318.) Thus, no matter how unlikely or improbable, plaintiff's allegations must be accepted as true for the purpose of ruling on the demurrer. (Del E. Webb Corp. v. Structural Materials Co. (1981) 123 Cal.App.3d 593, 604.) Nevertheless, this rule does not apply to allegations expressing mere conclusions of law, or allegations contradicted by the exhibits to the complaint or by matters of which judicial notice may be taken. (Vance v. Villa Park Mobilehome Estates (1995) 36 Cal.App.4th 698, 709.) A general demurrer does not admit contentions, deductions, or conclusions of fact or law alleged in the complaint; facts impossible in law; or allegations contrary to facts of which a court may take judicial notice. (Blank, supra, 39 Cal.3d at p. 318.)

Pursuant to Code Civ. Proc. §430.10(e), the party against whom a complaint has been filed may object by demurrer to the pleading on the grounds that the pleading does not state facts sufficient to constitute a cause of action. It is an abuse of discretion to sustain a demurrer if there is a reasonable probability that the defect can be cured by amendment. (Schifando v. City of Los Angeles (2003) 31 Cal.4th 1074, 1082, as modified (Dec. 23, 2003).)

-----¿

Meet and Confer Requirement— Before filing a demurrer or a motion to strike, the demurring or moving party is required to meet and confer with the party who filed the pleading demurred to or the pleading that is subject to the motion to strike for the purposes of determining whether an agreement can be reached through a filing of an amended pleading that would resolve the objections to be raised in the demurrer. (Code Civ. Proc., §§ 430.41, 435.5.) The Court notes that this requirement has been met. (Dugan Decl., ¶ 3.)

Request for Judicial Notice – Judicial notice may not be taken of any matter, unless authorized or required by law. (Evid. Code, § 450.) Under Evidence Code section 452, the Court may take judicial notice of the private and official acts of the legislative, executive, and judicial departments of the United States and of any state of the United States; and the records of any court of the United States and of any state of the United States; and it must take judicial notice of those acts and records if a party so requests and provides sufficient notice to the adverse party. (Evid. Code, §§ 452, 453.) “In determining the sufficiency of a complaint against demurrer a court will consider matters that may be judicially noticed.” (Joslin v. H.A.S. Ins. Brokerage (1986) 184 Cal.App.3d 369, 374.)

Here, Defendants request judicial notice of Exhibit (A) Case No. 25AVCV1458. The court may take judicial notice of Complaint as a record of the court pursuant to Evidence Code section 452. The request is granted. (Evid. Code, § 452, subd. (d).)

III. Discussion

Application – Defendants demur to the wrongful death claims for failure to join a necessary party. (Code Civ. Proc., § 430.10, subd. (d).) Defendants also demur to Plaintiffs’ survival claims for failure to state facts sufficient to constitute the causes of action. (Code Civ. Proc. § 430.10, subd. (e).) Lastly, Defendants demur to Plaintiff’s sixth cause of action under Government Code section 845.6 for failure to state facts sufficient to constitute the cause of action. (Id.)

Wrongful Death – “The elements of a cause of action for wrongful death are a tort, such as negligence, and resulting death.” (Lopez v. City of Los Angeles (2011) 196 Cal.App.4th 675, 685.) The right to bring a cause of action for wrongful death of a person caused by the wrongful act or neglect of another “is limited to those persons identified’ in the wrongful death statute”. (Stennett v. Miller (2019) 34 Cal.App.5th 284, 290.) The statute describes those who can have standing to sue for wrongful death to include “any of the following persons or by the decedent’s personal representative on their behalf: (a) The decedent’s surviving spouse, domestic partner, children, and issue of deceased children, ...” (Code Civ. Proc., § 377.60.)

Defendants demur to Plaintiffs’ first, second, and fifth causes of action brought in connection with wrongful death. Defendants argue Plaintiffs fail to join Decedent’s surviving spouse who is a necessary party to the action. (Demurrer, p. 6.) Defendants argue that although Plaintiffs are Decedent’s children, Plaintiffs must join any known heir including Decedent’s spouse. (Id.)

The court in *Gonzales v. Southern Cal Edison Co.* explained that “[g]enerally, there may be only a single action for wrongful death, in which all heirs must join. There cannot be a series of such suits by individual heirs... This is the so-called one action rule. (*Gonzales v. Southern Cal. Edison Co.* (1999) 77 Cal.App.4th 485, 489.) Here, there is a concurrently active case related to the instant claim (Case No. 25AVCV01458). Plaintiffs have moved to intervene in the related case pursuant to the one-action rule. (Motion for Leave to Intervene, filed May 29, 2026.)

In the alternative, Defendants bring a plea in abatement. Defendants argue that parties facing a wrongful death action in which all the heirs should have, but have not, been joined are entitled to move to abate the action. (*Adams v. Superior Court* (2011) 196 Cal.App.4th 71, 77.) “[W]here all the heirs are not joined, and timely objection is made on that ground by a defendant, the action should be abated....” (Ibid.) To “abate” a right of action is to suspend its prosecution due to some impediment that, without defeating the underlying cause of action, prevents the present maintenance of suit. (*County of Santa Clara v. Escobar* (2016) 244 Cal.App.4th 555, 564.) It is an essential characteristic of a plea in abatement that it will not usually prevent the plaintiff from prosecuting the abated cause of action if and when the occasion for abatement is

removed. (Id. at p. 568.) "Abate" and "stay" are often viewed as synonymous. (Id. at p. 565.)

Given that Defendants have asked the Court to take judicial notice of the related action in which the surviving spouse of the Decedent is the plaintiff, the Court determines that it is the best course of action to grant the plea of abatement in the alternative, and overrule the demurrer as to this and all other cause of action as premature at this time. The Court will address the disposition of this matter going forward at the hearing on plaintiffs' Motion to Intervene in Action No. 25AVCV01458, set for hearing on June 25, 2026.

IV. Conclusion

Defendants California Department of Corrections and Rehabilitation, G. Galstian, and L. Lundy's plea in abatement in the alternative is GRANTED. The demurrer is OVERRULED as premature.